

Rajeev Verma v. Purvanchal Vidyut Vitaran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 20 February 2023 · Writ-C No. 37382 of 2022 · WRIT - C No. - 37382 of 2022 · **Writ disposed; EE to consider connection grievance in four weeks**

HEADNOTE

Without expressing any opinion on the merits of a claim for a domestic connection to a Varanasi apartment under clause 4.9 and Chapter 3 of the Uttar Pradesh Electricity Supply Code, 2005, the High Court, with consent, disposed of the writ by directing the newly impleaded Executive Engineer of Purvanchal Vidyut Vitaran Nigam Limited to examine and redress the petitioner's grievance in accordance with law within four weeks of production of a certified copy.

FACTUAL SUMMARY

Rajeev Verma sought mandamus against Purvanchal Vidyut Vitaran Nigam Limited for a domestic connection to Annpurna Apartment, including his flat no. 301 at Rajeshwari Nagar Colony, Mahmoorganj, Varanasi. He said his application followed clause 4.9 of the Uttar Pradesh Electricity Supply Code, 2005 (amended from 17 May 2019) and Chapter 3 on multi-storey colonies, and that a 26 December 2021 representation remained pending. He offered to pay all charges. After a pass-over for instructions, the Executive Engineer was impleaded.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

new connection — consider grievance in accordance with law

HOLDING

Without expressing any opinion on the merits, and with consent, the writ seeking mandamus for a domestic electricity connection is disposed of by directing the concerned Executive Engineer (respondent no. 4) to look into, examine and redress the petitioner's grievance for grant of the connection in accordance with law, preferably within four weeks of production of a certified copy of the order. ¶ 2

FLAG Petitioner described the provision as 'Chapter 4.9, Part-1' of the Supply Code; the catalogued clause is 4.9.

PRINCIPLE TAGS

procedural-consider-in-accordance-with-law The Court did not construe clause 4.9 or Chapter 3. It disposed of the writ by consent, without a merits grant or refusal, directing the Executive Engineer to examine and redress the connection grievance in accordance with law within a fixed time. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.9 AND CHAPTER 3 OF THE UTTAR PRADESH ELECTRICITY SUPPLY CODE, 2005 REQUIRED GRANT OF A DOMESTIC CONNECTION TO ANNPURNA APARTMENT INCLUDING THE PETITIONER'S FLAT

The Court expressly declined to express any opinion on the merits. ¶ 2